

define the scope of the oral proceedings and that it was a procedural measure designed to make it easier for the parties to prepare for them efficiently, not an "invitation" to make further amendments (see e.g. T 1459/11). Patent proprietors were not entitled to hold back on making amendments in response to an opponent's objections until being confronted with an unfavourable preliminary opinion of the board or realising that the board was not going to endorse their position and arguments (see e.g. T 136/16, T 2072/16).

In T 995/18 too, the board held that it was irrelevant for the purposes of Art. 13(2) RPBA 2020 whether it departed at the oral proceedings from its preliminary opinion in the communication under Art. 15(1) RPBA 2020. Each party to appeal proceedings had to present its own case at the outset – if necessary, by responding to the case made by the opposing party immediately – rather than waiting until the board confronted it with an unfavourable opinion. Changing an opinion expressly referred to as preliminary in the light of the oral discussion of arguments that were all already known from the written proceedings could not serve as justification for the purposes of Art. 13(2) RPBA 2020. The board nevertheless admitted the auxiliary request filed at the oral proceedings on the basis that it did not regard it as an amendment within the meaning of Art. 13(2) RPBA 2020 (see chapter V.A.4.2.2d(i) above).

- j) Amendment not adding anything of substance to the discussion of the objection raised

In T 953/16 the appellant (applicant) submitted that the new auxiliary requests at issue were a legitimate response to a clarity objection raised by the board in its communication under Art. 15(1) RPBA 2020. The board noted, however, that although the amendments made to claim 1 in these requests constituted an attempt to clarify the claims, the inventive-step objections raised by it in its communication had already taken the features concerned into account in the interpretation of claim 1. It was therefore apparent to the board that the amendments did not add anything of substance to the discussion of inventive step and, therefore, they did not address all of the outstanding issues raised by it. In view of its negative conclusions on inventive step for the higher-ranking requests, the board saw no exceptional circumstance that could justify the admission of the new auxiliary requests into the appeal proceedings (Art. 13(2) RPBA 2020).

- k) Prima facie allowability

In T 1185/17, on admittance of auxiliary request 1 filed after notification of the summons to oral proceedings, the appellant argued that this request overcame the objection under Art. 123(2) EPC referenced in the preliminary opinion of the board and was prima facie allowable. The board, however, underlined that these were criteria under Art. 13(1) RPBA 2020 that applied to any amendment of the party's appeal case after it had filed its grounds of appeal and therefore could not simultaneously be cogent reasons justifying exceptional circumstances for taking an amendment into account under Art. 13(2) RPBA 2020. See also T 2787/17.

However, see also T 1857/19, which stated that, even if the deletion of a claim category were to be considered an amendment, the fact that it significantly enhanced procedural

economy by clearly overcoming existing objections without giving rise to any new issues could be seen as an exceptional circumstance within the meaning of Art. 13(2) RPBA 2020.

l) Embodiment never claimed

In T 2787/17 an embodiment previously disclosed only in the description was first added to – and thereby limited – a claim after the summons had been notified. The board found that the patent proprietor had failed to put forward any cogent reasons justifying exceptional circumstances. In particular, the board disagreed with its argument that the amended auxiliary request was clearly allowable and thus conducive to procedural economy. Nor was it persuaded by the argument that the limitations to particular embodiments could not come as a surprise because the proceedings thus far had been largely devoted to how the general term now narrowed down by these limitations was to be understood. That, it held, was instead an indication that the patent proprietor should already have submitted such fallback positions at the opposition stage. See also T 1080/15 (summarised in chapter V.A.4.5.11d).

m) Acceleration of the proceedings

The board in T 717/20 held that an acceleration of the proceedings at the request of a national court under Art. 10(4) RPBA 2020 could not serve as justification for filing new requests and thereby amending the appeal case at the latest possible stage in the proceedings.

n) Change of representative

In T 1080/15 the board, with reference to established case law (Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.8.2), held that a change of representative could not as such qualify as an exceptional circumstance justifying the admission of a request in appeal proceedings.

In T 615/17 the board confirmed that the admissibility of an amendment could not depend on whether there had been a change of representative, which was down to the choice made by the appellant for its own – possibly even strategic – reasons. It also reiterated that it was ultimately the applicant's responsibility to determine the subject-matter of a patent (T 382/96).

o) Representative unable to contact appellant

In T 2329/15 the board did not accept the appellant's lack of involvement in the prosecution of the case in hand as an exceptional circumstance. Exceptional circumstances generally concerned new or unforeseen developments in the appeal proceedings themselves.

- p) Technical problems during videoconference – not causal for need to file only at this stage

In T 1897/16 the appellant (patent proprietor) invoked technical problems which had occurred at the beginning of the oral proceedings as exceptional circumstances within the meaning of Art. 13(2) RPBA 2020. However, since the proprietor did not explain how these technical shortcomings could have been causal for the need to file auxiliary request 4 only at the end of the oral proceedings rather than at an earlier stage of the appeal proceedings, the board did not consider these technical problems to be exceptional circumstances.

- q) COVID-19 pandemic – not causal for late filing

In T 2610/16 the board found that the amendment at issue should have been filed at a much earlier stage in the proceedings and concluded that the restrictions resulting from the COVID-19 pandemic, which had only been put in place the preceding March, did not amount to exceptional circumstances within the meaning of Art. 13(2) RPBA 2020. Similarly T 2703/16 and T 1483/16.

4.5.7 New facts, objections, arguments and evidence filed – exceptional circumstances established

- a) Response to a new argument of the board

In T 1309/16 the board admitted new citations (D23-D25) forming common general knowledge that had been filed in response to a new line of argument in its preliminary opinion.

In T 1038/18 the appellant (opponent), in reply to the preliminary opinion expressed by the board in its communication under Art. 15(1) RPBA 2020, submitted for the first time during the appeal proceedings arguments of lack of inventive step over document D1 in respect of a claimed feature that did not correspond to the features identified by the opposition division as new but had subsequently been identified in the board's preliminary opinion as the sole distinguishing feature over document D1. The board did not agree with the respondent (patent proprietor), who objected that the appellant's arguments could have been submitted with the statement of grounds of appeal as precautionary measure and therefore should not be admitted. It instead acknowledged cogent reasons justifying exceptional circumstances and, in the exercise of its discretion under Art. 13(2) RPBA 2020, admitted the appellant's arguments into the proceedings.

- b) Immediately apparent that objection raised against different request also applies to request at issue

In T 2219/18 the board considered that there were exceptional circumstances in the case in hand, because the arguments submitted by the opponent against claim 1 of auxiliary request 3 during oral proceedings were entirely identical with the arguments submitted in the statement of grounds of appeal against claim 1 of auxiliary request 1. According to the board it was immediately apparent that these arguments likewise applied to claim 1 of

auxiliary request 3. Consequently, the opponent's submissions during oral proceedings were by no means unexpected and were taken into consideration by the board.

4.5.8 New facts, objections, arguments and evidence filed – no exceptional circumstances established

a) Meaning of the time limit set in the communication under Article 15(1) RPBA 2020

In T.1756/16 the board refused under Art. 13(2) RPBA 2020 to admit an inventive-step objection raised only after the summons to oral proceedings. It did not accept the appellant's argument that it had to be taken into account because it had been submitted within the period set in the board's communication under Art. 15(1) RPBA 2000. It pointed out that – even if, as in this case, a communication under Art. 15(1) RPBA 2020 often set the parties a time limit for filing any submissions, which would then be subject to the admission criteria in Art. 114(2) EPC and Art. 13 RPBA 2020 – it was not a communication under R. 100(2) EPC inviting them to file observations within a specified period. The appellant had therefore not been entitled to presume that any new objections would be admitted simply because they had been filed before that time limit. The board found that the appellant had also not put forward any cogent reasons demonstrating exceptional circumstances that might justify considering its objection. See also T.884/18.

b) Board's preliminary opinion based exclusively on earlier submissions

In T.908/19 the appellant (opponent) justified the late submission of a further document and new lines of attack only at the oral proceedings by arguing that neither the document nor the objections could have been raised earlier since they were filed in response to the board's preliminary opinion expressed in the annex to the summons. The board could not accept this argument, as its preliminary opinion had been based exclusively on the submissions made by the parties in the grounds of appeal and the reply. Nor had the appellant identified any particular aspect that might be new or surprising to it, but rather appeared motivated by the fact that the board had pronounced itself provisionally in favour of the respondent. Thus, the board saw no exceptional circumstances, let alone ones that had been reasoned, which could justify the late filing of these submissions.

See also T.276/17 (D 23 not admitted, because the board's communication had merely addressed an issue already raised by the opposition division and made the connection with one of the appellant's arguments).

c) No cogent reasons why the objection had not been raised earlier

In T.1756/16 the board considered that the fact that auxiliary request 1, initially filed with the reply, had been slightly amended again in response to its communication under Art. 15(1) RPBA 2020 did not justify the new objection (lack of inventive step) subsequently filed by the appellant, because the new auxiliary request 1 was similar in content to the old one and the appellant had already had an opportunity to respond to the filing of that older request. In this connection, the board observed that the new RPBA instructed the boards not to send a summons in inter partes proceedings any earlier than

two months after receipt of the reply (Art. 15(1) RPBA 2020). The aim of this timing was to give parties an opportunity to respond to another party's written reply with submissions which would still fall under the less stringent second level of the convergent approach.

In T 482/18 it was not until the oral proceedings on appeal that the appellant (opponent) raised objections under Art. 123(2) and 84 EPC to a term in the claims according to the main request (identical to the auxiliary request on the basis of which the opposition division had maintained the patent). It had not contested the feature in question under Art. 123(2) before the opposition division, which had rejected a clarity objection to this feature. The board dismissed the opponent's arguments in support of admitting this amendment to its appeal case. In particular, it could see no basis for inferring from Art. 114 EPC 1973 (identical to Art. 114 EPC) any essentially absolute right to raise such objections in any circumstances and at any time or even any duty of the board of the kind asserted by the opponent to investigate of its own motion.

In T 1771/17, the appellant (opponent) raised a novelty objection against claim 1 of auxiliary request 2B, which had been filed as a legitimate response to the board's preliminary opinion and so admitted. The board noted that auxiliary request 2B was based on an earlier request already on file and against which no objection had been raised by the appellant in the written proceedings. Since the new novelty objection would have equally applied to the earlier request and the appellant had not provided any cogent reasons why it had not been filed earlier, the board decided not to take it into account.

In T 847/20 the admittance of a request submitted with the statement of grounds of appeal was challenged by the respondent (opponent) only during oral proceedings. The board considered that the objection to admittance of this request should have been raised in the respondent's rejoinder. In the absence of valid reasons to raise this objection during oral proceedings, the board found it appropriate to exercise its discretion under Art. 13(2) RPBA 2020 not to admit it into the proceedings.

d) No new issue raised by board's comments in communication under Article 15 RPBA 2020

In its communication under Art. 15(1) RPBA 2020, the board in T 684/18 expressed doubts about the arguments the appellant (opponent) had put forward on the novelty of claim 1 of the main request. This prompted the appellant to attack inventive step. The board held that its comment in relation to the novelty of the claimed subject-matter had not in itself given rise to any new issue that could have justified responding with a new attack on inventive step.

e) No absolute right to discussion of all objections raised at first instance

In T 48/17 the board had to examine an amendment the respondent (opponent) had made to its case at the oral proceedings. The respondent argued, in essence, that the objections had already been raised but not discussed at first instance and that disregarding these objections on appeal without remitting the case to the department of first instance would therefore infringe its right to be heard. The board, however, observed that the EPC did not